

Daya Shanker Gupta v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 10 August 2022 · WRIT - C No. - 22855 of 2022 · **Writ disposed; liberty to object under Para 6.8; coercive recovery stayed.**

HEADNOTE

On the distribution licensee's statement that the consumer could object to a recovery demand of Rs. 84,770, the Division Bench disposed of the writ without examining merits. Liberty was granted to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing, preferably within the next four weeks. Coercive action on the impugned demand was stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Daya Shanker Gupta filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery certificate dated 9 September 2021 issued by the Power Distribution Corporation for Rs. 84,770, and a mandamus restraining its enforcement. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8 objection as alternate remedy to recovery demand

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to the consumer to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks. If so submitted, the objection shall be decided in accordance with law, expeditiously, preferably within the next four weeks, after affording reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court relegated the challenge to the recovery certificate to an objection under Para 6.8, without deciding the demand on merits. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the 6.8 objection is filed within four weeks, the licensee must decide it after hearing, preferably within four weeks, and coercive recovery is stayed for eight weeks or until that disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE DATED 9 SEPTEMBER 2021 FOR RS. 84,770

The Court expressly declined to examine the consumer's case on merits and left the demand to be decided on the 6.8 objection. ¶ 1